

		Jury trial remains set for 12/14/26. Plaintiff to give notice.
17	Milman vs. Sunshine Behavioral Health Group, LLC	<u>Motion to Compel Arbitration and Stay Proceedings</u> The court GRANTS Defendants SUNSHINE BEHAVIORAL HEALTH GROUP, LLC and CHAPTERS CAPISTRANO, LLC’s motion to compel arbitration and stay action. On a motion to compel arbitration under the Federal Arbitration Act (“FAA”), the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the [moving party] meets their initial burden, the burden of production shifts to the party opposing the [motion] to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but